Counsel review note — 2026-09-11 additions

Purpose. Two passages were added to the packet in the 2026-09-11 work session. The drafting has since been **tightened to be conservative and self-limiting**, so the *substance is finalized* — what remains is the one legal confirmation and the patent-eligibility assessment that only counsel can give. This note isolates each passage, shows its current (tightened) wording, and states the specific point for counsel. Nothing changes the existing compliance spine: features/value-delivered framing only, no revenue/sales/ROI representation, and no change to the non-refundable presale terms.

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1. Founding "max-scale" feature entitlement (business/advertising-offer — legal)

Where: `FOUNDING-OFFER-LEGAL-REVIEW.md` §1 (new paragraph) and §6 (operator-controls list).

Current (tightened) wording — scope and limits, stated conservatively: a founding advertiser is provisioned at the platform's highest (Tier 3 / Unlimited) capability level for every tier-gated product feature, at no additional charge (`FOUNDING_MAX_SCALE_ENABLED`, default on), expressly limited to: (i) a **capability-access grant only** — no cash, credit, or monetary value conveyed or promised; (ii) **no** increase in delivered ad-impression volume (the 200,000/yr allotment and its guarantee are unchanged); (iii) **no** revenue, sales, performance, or ROI representation — features, not outcomes; (iv) **no** change to the offer's price or non-refundable presale terms; and (v) an operator-controlled setting that may be adjusted or discontinued, described as advertising value delivered, not a contractual guarantee that any specific tool remains available. (Full text in `FOUNDING-OFFER-LEGAL-REVIEW.md` §1.)

Questions for counsel:

1. **Presale consideration / value framing.** The founding offer is a non-refundable presale. Does granting the Tier-3/Unlimited *capability* level free to founders create any implied-value, "bait," or deceptive-comparison exposure relative to the paid Tier 2/Tier 3 price points? Is the "capability, not impression volume" distinction a sufficient and clearly-disclosed limit?
2. **Disclosure of operator toggle.** The entitlement is controlled by `FOUNDING_MAX_SCALE_ENABLED` (default on) and could, in principle, be turned off. Does the founding agreement need to disclose that included features may change, or should the entitlement be contractually fixed for the founding term once granted?
3. **"No revenue/sales/ROI promise" adequacy.** Is the existing disclaimer wording enough to keep this a features/"advertising value delivered" representation and not an earnings claim?
4. **Parity across the tier comparison.** Marketing now states PPC network advertising is included in all three tiers and founders get everything at max capability. Any UDAP/advertising-comparison concerns with how the tier table presents "included" vs "at maximum capability"?

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2. Full-screen watch-gated AdGrid interaction (patent disclosure)

Where: `PATENT-FEATURE-AND-FUNCTION-DISCLOSURE-BRIEF.md` new §1.16 — framed as a complete feature disclosure for counsel's novelty & claim-scope assessment (not a novelty opinion).

What's disclosed: the reworked full-screen AdGrid interaction — a single grid **tap** opens a full-screen takeover where the advertiser's creative **loops through a fixed 30-second watch gate**, the survey **questions appear beneath the still-looping ad**, the shopper **submits (server-credited)**, the **product Buy-Now page reveals**, and the shopper **swipes to the next ad**, the whole multi-ad session driven by one tap. **Honest steer for counsel:** of the flagged angles, **(C)** — that technical interaction as one continuous full-screen unit — is the one most plausibly claimable; **(A)** shared-across-tiers and **(B)** founding-max-capability are business-model/offer choices and are likely **not** separately patentable (included for completeness). (Full text in §1.16.)

Questions for patent counsel:

1. **Novelty / claim scope.** Of the three flagged angles, which (if any) are patent-eligible subject matter and novel over prior art — particularly angle (C), the tap-once → looping watch-gate → questions-beneath → swipe-to-next interaction as one continuous unit?
2. **Prior-art landscape.** Rewarded-video and watch-to-unlock survey flows are well-trodden. Is a targeted prior-art search warranted before spending on a filing, and does the *specific combination* (continuous-loop gate + questions

beneath the same still-playing creative + single-tap multi-ad swipe session) clear it?

3. **Business-model vs. technical.** Angles (A) shared-across-tiers and (B) founding-max-capability read as business-model choices. Should they be dropped from the patent track and kept purely as offer/marketing, or is there a technical implementation worth claiming?
4. **Timing vs. public disclosure.** Should a provisional be filed before the full-screen AdGrid is shown publicly (launch, demo, or marketing), to preserve rights? What is the disclosure-bar risk if it ships first?

What is already conservative (context for counsel)

- Both passages avoid any revenue/earnings/ROI promise; the founding entitlement is framed as features/“advertising value delivered,” not a return.
- The founding entitlement is explicitly **capability, not delivered ad-impression volume** — the 200,000/yr allotment and its capacity-paced, deliver-until-met guarantee are unchanged.
- The patent passage is explicitly marked **draft, not vetted for novelty or claim scope**, and defers eligibility entirely to counsel.

Related packet docs: `FOUNDING-OFFER-LEGAL-REVIEW.md`, `PATENT-FEATURE-AND-FUNCTION-DISCLOSURE-BRIEF.md`, `LAWYER-CONVERSATION-GUIDE.md`, `FOR-YOUR-ATTORNEY.md`.